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Constantius Gallus and Julian as Caesars of Constantius II

On March 15th 351 AD. (1) at Sirmium Flavius Claudius Constantius, known as Gallus, was suddenly, "at the very beginning of his adult life, raised by an unexpected advancement from the utter depths of wretchedness to the heights of sovereignty" (2). Negotiations with Magnentius, the western usurper, had broken down (3) and the Emperor Constantius II was preparing for war; in the East the Persians were showing hostility. Since it was felt that an imperial presence was necessary there also (4), it was decided to promote Gallus to the rank of Caesar. He was Constantius' cousin and, with his half-brother Julian, the sole survivor of the massacre of the relatives of Constantine I, ordered, or at least connived at, it was said, by Constantius himself (5).

The East was entrusted to Gallus, and he held it for three years, until 354, when he was deposed by Constantius and put to death. Ammianus Marcellinus in book 14 of his history is the main authority for the imperial career of Gallus, and his account has already been examined by E. A. Thompson (6). It is suspect on grounds both lite-

(1) Date: Th. Mommsen (ed.), *Chron. Min.*, I, p. 238.

(2) Ammianus, XIV, 1, 1 (subsequent references without name are to Ammianus' history). Ammianus refers to the exile at Macellum which was perhaps not too harsh (P. Allard, *Julien l'Apostat*, Paris, 1900-3, I, p. 278-91). The tone is from Julian (cp. *Ep. ad Ath.*, 271 B-D).

(3) Petrus Patricius, *frag.* 16. Zosimus, II, 46, 6, says that Constantius offered terms as a ruse.

(4) Philostorgius, 3,25; Zosimus, II, 45, 1; cp. Zonaras, 13, 5.

(5) Ordered by Constantius: Zosimus, II, 40, 2; Julian, *Ep. ad Ath.*, 270C-271B; Zonaras, 13, 4; Philostorgius, 2, 16; Theodoret, 3, 1; Athanasius, *Hist. Ar. ad Mon.*, 69. Connived at: Eutropius, 10, 9; Socrates, 2, 25. Victor, *Caes.*, 41, 22, says that it was uncertain who was to blame. Gregory Nazianzenus, *Or.*, 21, 26, implies that Constantius was guilty.

(6) E. A. Thompson, *The Historical Work of Ammianus Marcellinus*, Cambridge, 1947, ch. 4 (henceforth referred to as Thompson, Cambridge, 1947).

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rary and historical, the latter of which I am primarily concerned with here ; the former I hope to discuss elsewhere.

In his narrative Ammianus frequently and strongly condemns Gallus' cruelty. But the facts which he offers give a picture somewhat less adverse. Rhetoric is a tool of much Roman historiography, and Ammianus uses it as copiously as most, especially in this part of his history. For the moment two examples will suffice. Thalassius the arrogant Praetorian Prefect roused the Caesar's rage by his untimely opposition to his wishes : *quibus mox Caesar acrius efferatus... ad uertenda opposita instar rapidi fluminis irreuocabili impetu ferebatur* (XIV, 1, 10). Elsewhere the historian describes how Gallus, after ordering the deaths of the two Apollinares, "no less ferocious, like a lion that has tasted human flesh, looked into many cases of this kind" (XIV, 9, 9).

Such rhetoric can be used merely to emphasise the honest opinions of the writer ; but it can also shore up a weak case. When the judgement of the writer is not fully substantiated by the facts which he presents in all due honesty, these two functions of the rhetoric merge. The process of obscuring is, in the present case, probably unconscious, since all uncomfortable facts are not eliminated. But at times any evidence at all is in short supply. In neither of the two examples quoted has Ammianus provided facts as a basis for his assertions, and, significantly enough, both passages stand at the end of a section. Thus the impression of savagery remains, although the historian has turned to another subject. In Ammianus' history cruelty is Gallus' predominant trait, stressed with vague, rhetorical assertions such as those just quoted (1) and by means of single words which keep the image alive (2). That is not to suggest that Gallus did not have a hasty temper and perhaps a cruel streak. Julian, his half-brother and friend, concedes that he did (3).

Though he never specifically admits that it is such, Ammianus has given an account of a plot against Gallus, its failure and the trial

(1) See also XIV, 1, 1 ; 1, 4-5 ; 7, 3.

(2) E.g. XIV, 1, 1, *asperitas* ; 1, 2, *acerbitati* ; *saeuientis* (cp. 7, 21 ; 11, 3) ; 1, 4, *crudelitati* ; 1, 10 ; 7, 2, *efferatus* ; 1, 10, *rabiem* ; 7, 3, *diritatis* ; 9, 3, *truci* ; 9, 9, *ferociens* ; 11, 8, *truculentum*.

(3) JULIAN, *Ep. ad Ath.* 272C and 271D : *εἴ τι περὶ τὸν τρόπον ἄγριον καὶ τραχὺ τὸν ἐκείνου κατεφάνη*. Cp. PHILOSTORGIUS, 3, 27 ; OROSIUS, 7, 29 ; VICTOR, *Caes.*, 42, 12 ; Gregory OF NYSSA, *c. Eunom.*, I, (*P.G.* 45), col. 257 ; Gregory NAZIANZENUS, *Or.*, 4, 24 ; ZONARAS, 13, 9.

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and execution of the conspirators (1). The outline of the account is as follows : the Praetorian Prefect, Thalassius, had died and Constantius, alarmed by reports of Gallus' behaviour and eager to remove him from the East, told the new Prefect, Domitianus, "to urge Gallus in a friendly and respectful fashion to hurry to Italy" (XIV, 7, 9). Domitianus, however, refused to call on the Caesar, but shut himself away and "made many plots for his death" (*ibid.* 10). Finally upon invitation he appeared in the *consistorium*, insulted Gallus and left. When the Caesar, outraged, had the Prefect arrested, Montius, the Quaestor of the Palace, in an address to the leaders of the palatine troops, accused him of treason against Constantius. Gallus, hearing of this, assembled the soldiers and asked for their loyalty. The soldiers reacted by tearing the two officials to pieces.

Ammianus does not say that Gallus gave the order to kill, and in fact notes that a certain Luscus, *curator urbis* of Antioch (2), urged on the troops, for which he was soon afterwards burnt alive. Whether this was done during Gallus' reign or later is not made clear. But since, as we are subsequently informed (XV, 3, 1), Constantius punished *aulici* and soldiers for their part in the affair, it is possible that Luscus, who was neither *aulicus* nor soldier, was punished by the Caesar. Nevertheless, Ammianus' account gives the impression that Gallus was responsible for the deaths ; and later the impression seems to have hardened into a fact when the imprisoned Gallus, dreaming of his victims, is described — "His mind was overcome by terror at the ghosts which shrieked around him, as the crowds of the slain (as he imagined in his nightmares), led by Domitianus and Montius, seized him and threw him to the talons of the Furies". (XIV, 11, 17) A later writer, Gregory of Nyssa, appears to accept the connexion (3).

Montius, as he lay dying, called out the names Epigonus and Eusebius, and two innocent persons were arrested, *nequid intepesceret*, suggests Ammianus, adding that Montius really meant two "tribunes of the forges who promised arms if a revolution were attempted" (XIV, 7, 19) — an admission that there was a plot and that the quaestor was in it or knew of it.

(1) XIV, 7, 9-21 ; 9, 1-8.

(2) The *curator urbis* was responsible for municipal finances : DE JONGE, *Sprachlicher und Historischer Kommentar zu Ammianus Marcellinus*, Groningen, 1935-53, II, *ad* XIV, 7, 17.

(3) *C. Eunom.*, I (*P.G.* 45), col. 257.

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Then Domitianus' son-in-law, Apollinaris, was discovered in Mesopotamia looking for evidence that Gallus was planning revolution. He was arrested when trying to escape. His father, of the same name, was also apprehended in connexion with the illegal manufacture of a purple robe at Tyre. Although Ammianus says that many more were charged with complicity, he only specifies Maras, a deacon, and the purple-dyers of Tyre ; and of these the latter, *humiliores*, were only tortured as witnesses, a perfectly proper process under Roman law.

The historian then rounds off the section dealing with the plot and its discovery : *Iamque lituis cladum concrepantibus internarum, non celate (ut antea) turbidum saeuiebat ingenium a ueri consideratione detortum, et nullo impositorum uel compositorum fidem sollemniter inquirente, nec discernente a societate noxiorum insontes, uelut exturbatum e iudiciis fas omne discessit, et causarum legitima silente defensione, carnifex rapinarum sequester et obductio capitum et bonorum ubique multatio uersabatur per orientales prouincias* (XIV, 7, 21).

This passage offers wild rhetoric and unsubstantiated charges of widespread executions and confiscations, which obscure two further admissions that there were some persons guilty and that therefore there was a plot (*impositorum uel compositorum* and *a societate noxiorum insontes*) (1). The technique is clear. The facts are given, but are presented so as to be easily overlooked. The episode is interpreted as an outburst of gratuitous cruelty by Gallus, though only two innocent victims are named. Gregory of Nyssa talks of exiles, not deaths (2).

Despite the repeated charges of mass killings, Ammianus names for the whole of Gallus' reign only three apparently innocent victims, Epigonus and Eusebius, and possibly Clematius of Alexandria. Deplorable as these deaths may be, they are not, as E. A. Thompson points out, a bad record for a reign of three years in that era. Others in the history have far worse records (3).

The passage just quoted, which claims that the accused were not fairly tried, is separated by an excursus on the eastern provinces (XIV, 8) from the account of the regular trial which ensued (XIV,

(1) The innocent-guilty antithesis is also used in XIV, 7, 8.
(2) *C. Eunom.*, I (*P.G.* 45), col. 257.
(3) THOMPSON, Cambridge, 1947, p. 67.

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9, 1 ff.). In describing the proceedings of the trial Ammianus is clearly ill at ease, and with good reason since one of his heroes, Ursicinus, was the chief judge. Ammianus, although complaining that the trial was rigged, turns censure from Ursicinus by insisting that he was a soldier, unused to the arguments of the Forum and, since he was pressured and watched by Gallus' spies (even by the Caesar's wife), a mere figurehead — *imaginarius iudex* (XIV, 9, 3) (1). Eusebius, when brought to the investigation, alleged procedural irregularities and called for the accuser (*ibid.*, 5). But Ammianus has already indicated that accusers were present (*ibid.* 1). If there were irregularities, the fault lay, despite Ammianus' protestations, with the chief judge, Ursicinus, who conspicuously failed to acquit the *insontes* and who appears to have been guilty of cowardice, since the letters, which he sent to Constantius complaining of Gallus' behaviour (*ibid.*), show that he was unhappy with the conduct of the trial.

However, the preceding interpretation of Eusebius' demands is possibly mistaken. Perhaps he was not complaining of irregularities, but was calling for the *real* accuser (i.e. Gallus) to appear. He uses the singular *accusatorem*, whereas Ammianus talks of *accusatores*, whom he calls (together with the judges associated with Ursicinus) *subditiui*, counterfeit (2). If this is the case, Ammianus has misinterpreted the words of Eusebius because, forgetting that he has mentioned the false accusers and mindful that Gallus was the real initiator of the case, he wishes to make a different point, that the accused should have been tried under the accusatory process, and not, as might have been the case if there were no direct accuser, by inquisition (3). If the alternative interpretation of Eusebius' words is correct, he would have been guilty of insulting the Caesar, a treasonable offense, and might therefore have been executed for this and not for complicity in the plot. Thus in a technical sense one of Gallus' innocent victims might have been guilty. Similarly the condemnation of Epigonus, who "con-

(1) Rigged trial : XIV, 9, 1 and 3. Ursicinus' inexperience : *ibid.* (as a *magister militum* he would have judged cases between soldiers : see A. H. M. Jones, *The Later Roman Empire 284-602 AD*, Oxford, 1964, I, p. 385-6). Spies : XIV, 9, 3.

(2) XIV, 9, 1.

(3) Roman magistrates sometimes proceeded by inquisition : H. F. Jolowicz, *Historical Introduction to Roman Law*, Cambridge, 1932, p. 409. In XIV, 1, 5 also Ammianus censures Gallus for conducting trials with no accuser.

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fessed" under torture (1), is defensible, since in Roman law such a confession in such a case was valid.

There are further difficulties in Ammianus' account. Gallus' reign comes at the very beginning of the surviving part of the history, and E. A. Thompson, who considers that we have all that Ammianus wrote about him, argues that the historian has made the following serious omissions (2) :

Ammianus has obscured Gallus' popularity with the lower classes of the East.

He has failed to note the Caesar's pious attitude towards the popular martyr St. Babylas. Gallus, a fervent Christian of Arian persuasion (3), placed the remains of the saint by the temple of Apollo Daphnaeus at Antioch in order to silence the oracle there. The proximity of the sacred relics silenced the *daemon*, who refused to speak even for Julian. The latter therefore had the bones of the martyr removed (4).

Ammianus has played down Gallus' military achievements and has entirely failed to record his efficient suppression of a Jewish revolt at Diocaesarea (5).

He has all but omitted the failure, through lack of popular support, of Magnentius' attempt to have the Caesar assassinated.

He is silent about Constantius' change of heart which led to an annulment of the death sentence on Gallus and a reprieve which was sent but failed to arrive in time.

He has not mentioned Gallus' friendship with many decent men, such as the Arian bishop Aetius (6), who would not have consorted with a disgraceful tyrant.

This is all a little hard on Ammianus. Thompson considers that book 14 contains all that the historian ever wrote about Gallus (7) and therefore argues that the conspiracy of Magnentius to have him

(1) XIV, 9, 5.

(2) Cambridge, 1947, p. 56-71.

(3) Socrates, 3, 17 ; Sozomen, 3, 15 ; 5, 9 and 19 ; Gregory Nazianzenus, *Or.*, 4, 24 ; Julian, *Ep.*, 82 (ed. Wright) : a letter from Gallus to Julian, almost certainly forged.

(4) Socrates, *loc. cit.* ; Sozomen, 3, 17 ; Philostorgius, 7, 8 ; John Chrysostom, *Or. in S. Babylam contra Jul. et Gent.*, 14.

(5) Socrates, 2, 33 ; Sozomen, 4, 7 ; Victor, *Caes.*, 42, 1. Dated 353-4 AD. : Thompson, Cambridge, 1947, p. 58.

(6) Philostorgius, 3,27 ; 4, 8.

(7) Thompson, Cambridge, 1947, p. 56-7.

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murdered, which is noted in XIV, 7, 4 and described at greater length by Zonaras (13, 8), was not mentioned previously. However, in the passage cited Ammianus is not interested in the plot itself but in the fact that *aliqua mulier uilis*, revealing a plot by *milites obscurissimi* (both phrases emphatically placed at the end of their clauses), was treated with such honour and confidence by Gallus' wife Constantia. That is to say, the historian is here concerned solely with the impropriety of the affair, and the passage offers no guarantee that the plot has not been mentioned before.

On the positive side, Gallus was created Caesar in 351 AD., whereas the first surviving book of Ammianus' history begins in 353. The early books have in the main an annalistic structure, the events being loosely grouped around a war-year (1), and therefore the telescoping of a three year reign into one account is at least unlikely, if not impossible. Moreover, there is no mention of the ceremony which marked Gallus' elevation, neither an elaborate description such as Ammianus provides for Julian, Gratian, and Valentinian I, nor a briefer notice, as is granted to Jovian, Valens and Valentinian II and even to usurpers (2). Yet although it would seem that to Ammianus a mention of the ceremony was a necessary detail, none is accorded to Gallus in the surviving part of the work. The few words at the beginning of book 14 which Thompson takes to be an introduction to the reign are in no way comparable. Moreover, although book 14 covers the last year of Gallus' reign (353-4 AD.), we cannot be sure that we have all the events even for 353. Ammianus, who does not always begin a book with a new year (e.g. book 17), gives no formal indication that the beginning of book 14 marks the beginning of 353.

Thus the detailed account of the assassination attempt upon Gallus and a report of the crushing of the Jewish revolt could have been lost. Alternatively the suppression of the Jews could be concealed beneath one of the general statements of Gallus' cruelty, such as

(1) I. B. Pighi, *I Discorsi nelle Storie di Ammiano Marcellino*, Milan, 1936, p. 75. Ammianus announces the change to an episodic structure in XXVI, 5, 15. The war-year divides into winter and summer, winter ending in May : O. Seeck, *Zur Chronologie und Quellenkritik des Ammianus Marcellinus* in *Hermes*, 41, 1906, p. 487 ff.

(2) Julian : XV, 8, 4-18. Valentinian I : XXVI, 2. Gratian : XXVII, 6, 4-15. Jovian : XXV, 5, 4-7. Valens : XXVI, 4, 2-3. Valentinian II : XXX, 10, 5-6. Procopius : XXVI, 6, 14-18. Silvanus : XV, 5, 16.

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XIV, 7, 1 where he is said to have harassed *plebei*, no examples given. This is by no means unlikely, since Ammianus' selection of material for his history is governed by a theory of suitability, which rejects what are to him *minutiae* ; and these include people whom the historian holds to be socially inferior (1).

As for the failure to mention "decent" men who would not have associated with a tyrant such as Gallus is claimed to be, the first point is that Christians such as Aetius, involved in a bitter power struggle between Arianism and Orthodoxy, may well have decided to consort with Gallus, whether he were a tyrant or not, for the advantage of their sect. But even if they were all "decent" and would not have consorted with a monster, it is unlikely that Ammianus would have mentioned those who, like Aetius (and this remark disposes of Thompson's point about St. Babylas as well), were associated with the Christian religion. Ammianus was writing secular history which tended to avoid mention of things and persons Christian, unless they also had some other significance (2).

The sympathy of Gallus for the lower classes is unsubstantiated by evidence, and seems to arise from Thompson's interpretation of the Caesar's troubles over the corn supply at Antioch (3). On the other hand Gallus certainly seems to have been popular with the troops. When he was on his fatal journey to the West the military were withdrawn from the route by the Emperor lest they try to protect him (4) ; but even so, certain Theban legions offered help to the Caesar (5). But popularity with the soldiers, even the rank and file, does not necessarily indicate popularity with the lower classes in general. The lower ranks of a professional army do not always have the same aims and sympathies as the lower classes of the populace, and this was especially so in the later Roman Empire where, with the exception of the *limitanei*, attempts were made to

(1) On Ammianus and the theory of suitability, see p. 13 of my doctoral thesis for the University of Nottingham (unpublished, 1970), *Ammianus Marcellinus : a Study of his Historiography and Political Ideas* (henceforth referred to as BLOCKLEY, Nottingham, 1970). A revised version of part of it is due to be published in the *Collection Latomus*.

(2) A. D. E. and A. M. CAMERON, *Christianity and Tradition in the Historiography of the Later Empire* in *CQ*, 58, 1964, p. 316-28.

(3) *Op. cit.*, p. 60-2, 66-7 ; and see p. 462-64 of this paper.

(4) XIV, 11, 3.

(5) XIV, 11, 15. Cp. XIV, 7, 9 and 13.

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keep the civil and military separate (1), and where the army itself was already heavily Germanized. It is certainly wrong to see in Gallus a social reformer motivated by emnity towards the bureaucracy (2).

Constantius' alleged change of heart and the consequent reprieve rest upon a report found in other sources that one was sent but was stopped by the *praepositus* Eusebius. The latter certainly seems to have plotted against Gallus and may well have been the one who originally argued for his death (3). But the court eunuchs, isolated and universally disliked, were regularly the victims of uninformed and malicious criticism, and the report of the thwarted reprieve might merely have been an attempt, after the event, to deflect censure from the Emperor onto a ready target (4). Popular acceptance of the rumour was in this case very likely since, it was said, Constantius was greatly under the influence of Eusebius (5).

A far more serious criticism is that Ammianus has obscured Gallus' military success. The Caesar probably played little part in the suppression of a serious outbreak of brigandage in Isauria, and Ammianus makes no mention of him in the narrative of this episode (XIV, 2), except to remark at the end that, after the failure of Count Castricius against the brigands and after many warnings of the deteriorating situation, he sent out the Count of the East, Nebridius, who quickly ended the trouble. Since Castricius was on the spot, one would have expected Gallus to leave matters to him, especially if the Caesar himself were preoccupied elsewhere, as he almost certainly was.

We are told that Gallus was appointed Caesar for a military purpose, to protect the rear of Constantius against the Persians when

(1) On the division of the civil and military as a policy of Constantius : XXI, 16, 3 (cp. XIV, 10, 4). In Ammianus the only civilian officials to lead troops are a *praeses*, Ruricius (XXVIII, 6, 11) — in an abnormal situation — and the Praetorian Prefect, Florentius (XVIII, 2, 4 ; cp. XVI, 12, 14).

(2) As C. A. Balducci, *Gallo* in *RFIC*, N.S., 18, 1940, p. 269.

(3) Philostorgius, 4, 1 ; Sozomen, 5, 5 ; Zonaras, 13, 9. Libanius, *Or.*, 18, 152 and Julian, *Ep. ad Ath.*, 272D blame Eusebius for Gallus' death. Zosimus, II, 55, 2-3 also blames other plotters. Possible evidence for a change of heart is the non-erasure of Gallus' name from some inscriptions : Seeck, *Constantius* 5 in *RE*, IV, col. 1099.

(4) On this function of eunuchs, see M. K. Hopkins, *Eunuchs in the Later Roman Empire* in *PCPhS*, 189, 1963, p. 62-80.

(5) XVIII, 4, 3 : *Eusebi fauorem, cubiculi tunc praepositi, apud quem, si uere dici debeat, multa Constantius potuit.*

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the Emperor marched against Magnentius (1). Magnentius' attempt to have him assassinated argues his importance; and other sources say that he succeeded in his task of keeping the Persians at bay (2). Ammianus admits that the Persians were active under the command of the general Nohodares (their king, Sapor, being away on another frontier), but he ascribes their withdrawal to the treachery of some deserters who revealed the Persian plans to the Romans (3). This explanation is reasonable. The Persian objective was Batnae in western Osroene, not far from the Euphrates and the important and well fortified city of Edessa, which they had failed to reach even after their success at the battle of Sinagra in 348 AD. (4). An attack upon Batnae would have been a spectacular coup, at which presumably Nohodares was aiming, but very risky, and suicidal if the Romans were to learn of the plan. If this happened, the Persians would have been thwarted, since Mesopotamia was well guarded, as Ammianus says (XIV, 3, 2), and to proceed any distance into Osroene would have left their rear open to an attack from the North.

Nevertheless, Ammianus does not tell the whole story, for he gives Gallus no part at all in the Roman success. Later however, during the description of the food troubles which confronted Gallus at Antioch, he says, *Gallus Hierapolim profecturus, ut expeditioni specie tenus adesset* (XIV, 7, 5). The Caesar soon settled the food troubles, and we are never told that he did not go on to Hierapolis. He still had his army, which Constantius only withdrew later when things were peaceful (5); and Hierapolis was precisely the place to which he would go in order to prepare opposition to an attack on Batnae, since it was conveniently situated on the direct route to that place, the road which Julian took when he invaded Persia (XXIII, 2, 6). It would therefore appear that news of the impending attack brought Gallus to Hierapolis ready to defend Batnae and, if necessary, Osroene and

(1) PHILOSTORGIUS, 3, 25; SOCRATES, 2, 28; ZOSIMUS, II, 45, 1; LIBANIUS, *Or.*, 18, 16; ZONARAS, 13, 8.

(2) PHILOSTORGIUS, 3, 28; *Passio S. Artemii*, 12; cp. ZONARAS, 13, 9. Further evidence of hostilities is offered by AMMIANUS, XV, 3; 11, 4; THEMISTIUS, *Or.*, II, 39A. Two statements by Julian that the border was quiet are of little weight, since both occur in panegyrics on Constantius (*Or.*, I, 28D; II, 66D).

(3) XIV, 3.

(4) XXI, 7, 7; XVIII, 5, 7.

(5) XIV, 7, 9: *militare otium.*

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the rest of Mesopotamia. The proximity of this force, plus the strong garrisons to the North, caused the Persians to withdraw without fighting, leaving the border quiet and allowing Constantius later to weaken his Caesar by removing most of his troops. A demonstration by Gallus had sufficed, but Ammianus' malicious *ut expeditioni specie tenus adesset* was written in the light of this success without a fight, an event subsequent to the troubles at Antioch.

This interpretation of events derives support from other sources: from the *Passio S. Artemii* (12), which speaks of a Persian withdrawal at the news of Gallus' arrival; from Zosimus (III, 1, 1), who says that the Persians kept quiet for fear that Gallus would attack them; from Zonaras (13, 9), who mentions Gallus' success; and from the extremely enthusiastic Philostorgius (3, 28), who claims that the Caesar showed great bravery against the enemy.

Some of these omissions may have been accidental, others purposeful, but the knowledge of these facts, as Thompson has pointed out (1), does weaken the force of Ammianus' strictures upon Gallus. A consideration of possible sources for his account is also illuminating.

A major source for the trial of the plotters was probably Ursicinus himself, the superior and one of the heroes of Ammianus. Appointed chief judge as an honour and in order to ensure impartiality (2), he proceeded to complain secretly to Constantius of Gallus' behaviour (3). His unease during the trial might have resulted from complicity with the plotters rather than any scruples (4). His headquarters were at Nisibis, and the younger Apollinaris had been arrested in that area while tampering with the troops there (5), who were almost certainly under Ursicinus' command. And even if Ursicinus were not involved with the conspirators, he was certainly hostile to Gallus, probably because, as *magister equitum*, he resented the appointment of a Caesar, who was senior to himself. Thus he is hardly likely to have been an impartial source.

Ammianus himself was another source, and suspect of bias on two counts. Firstly, Gallus was a comparatively uneducated man (6),

(1) Cambridge, 1947, p. 58.
(2) So THOMPSON, *op. cit.*, p. 43.
(3) XIV, 9, 1.
(4) Cp. XIV, 11, 3, where the eunuchs suggest disloyalty on the part of Ursicinus.
(5) Ursicinus at Nisibis: XIV, 9, 1. Apollinaris in Mesopotamia: XIV, 7, 19.
(6) JULIAN, *Ep. ad Ath.*, 271D-272A.

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a condition unlikely to have recommended him to one who made education the first prerequisite of a leader. Secondly, Ammianus was an Antiochian, almost certainly of curial family and, although by joining the *protectores et domestici* he had apparently escaped his obligations, the curial order seems still to have held his sympathy (1). It was this group which bore the force of Gallus' anger at Antioch.

Some of these same curials may well have supplied the historian with information about the events at Antioch. For instance, the account of the death of the governor of Syria, Theophilus, appears to have come from such a source. The mob rioting on that occasion was aimed at curials, and, speaking of the killing of the governor, Ammianus says, *post cuius lacrimosum interitum, in unius exitio quisque imaginem periculi sui considerans documento recenti similia formidabat* (XIV, 7, 6). *Quisque* cannot refer to the commons, since they composed the mob and would have had nothing to fear from it. It almost certainly indicates the curials, and thus behind it lies curial thinking and a curial source.

Ammianus says (XIV, 7, 18) that Epigonus of Cilicia and Eusebius Pittacas were arrested as accomplices in the plot instead of two tribunes of the forges, and that the latter had promised weapons *si nouae res agitari coepissent* (XIV, 7, 19). Later he says of the same tribunes that "they had promised help for some future enterprise" (XIV, 9, 4). Since there is no indication that these tribunes were ever discovered by the authorities, the source of this information must have been someone in, or with knowledge of, the plot. It cannot be identified more closely, but it might have been curial. Why not Ammianus himself, an Antiochian, of curial background and a soldier — an ideal link between the civilian plotters and the military ?

This discussion of the sources is not complete. Others, for example, must be postulated for the whole of Gallus' journey to the West (XIV, 11, 13 ff.). But it is sufficient to show that they are suspect.

Ammianus' narrative is hostile and perhaps unfair to Gallus. It also fails to make clear what powers and competence he possessed when he took up residence at Antioch as Caesar. Certainly military,

(1) See THOMPSON, *op. cit.*, p. 2 ; W. ENSSLIN, *Zur Geschichtsschreibung und Weltanschauung des Ammianus Marcellinus*, Leipzig, 1923, p. 5-6 ; P. M. CAMUS, *Ammien Marcellin*, Paris, 1967, p. 25 ff. ; R. A. PACK, *Ammianus Marcellinus and the Curia of Antioch* in *C. Ph.* 48, 1953, p. 80-5.

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because his prime function was to oppose the Persians. However, since Ammianus describes activity mostly in the civil sphere, it is important to decide what his powers were in this respect.

As I have already argued, some at least of the account of the reign of Gallus has been lost, and book 14 is of little help in deciding what civil powers, if any, the Caesar possessed. However, although we have little direct evidence, Gallus' position can be partly reconstructed from Ammianus' description of Julian's elevation and from the detailed account of the latter's activities as Caesar in Gaul. It cannot be proven that the competence of the Caesar, or rather what Constantius conceived it to be, was the same in both cases ; and it is possible that the Emperor reacted to the special conditions of each situation, with the result that there was no connexion. But the Roman tendency towards continuity of institutions and the subsequent argument will render this unlikely. Therefore for the moment it will be assumed that Constantius' main line of thought would have been the same in both cases.

In 355 AD. Constantius' thoughts were again turned westwards. The Master of the Infantry, Silvanus, after some success against the Germans who were ravaging the Gallic provinces, was proclaimed Emperor by his troops. The motives of the usurper are unclear ; his reign lasted 28 days (1). But the revolt emphasised to the central government the plight of the Gauls, who were being reduced to desperation by continual German raids and clearly needed the presence of their Emperor, or an acceptable substitute, in order to maintain their loyalty (2). The latter course appealed, since Constantius was needed in the East, which was again threatened by the Persians (3). Therefore, after much debate and supported in his decision by his wife Eusebia, he decided to proclaim Julian, his last surviving male relative, Caesar (4) ; and after hesitation, Julian

(1) XV, 5. J. Češka, *Les dessous sociaux de l'usurpation de Silvain* in *Sborník Prací, Filos. Fak. Brnenské Univ.*, 10, 1961, p. 169-78, argues that Silvanus planned revolt, aided by the *laeti* and unrest in Gaul. I prefer Ammianus, supplemented by W. den Boer, *Silvanus and his Army* in *AClass.*, 3, 1960, p. 160-9.

(2) XV, 8, 1. Cp. Libanius, *Or.*, 12, 40-1.

(3) XVI, 9, 1.

(4) XVI, 8, 3. In Zosimus, III, 1, 2-3, Eusebia suggests sending Julian to Gaul in order that he might die there, but only in order to persuade Constantius to accept the plan (*τρόπῳ τοιῷδε τὸν ἄνδρα παρήγαγε*). Julian, *Ep. ad Ath.*, 274B-275B, attests the Empress' kindness.

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agreed (1). Ammianus describes the investiture, which took place on November 6th, 355 AD., and gives what purports to be the speech of the Emperor on that occasion (2). Although the forms of the speeches in the history are the work of Ammianus himself, the content of this one probably reflects what was said. The speech makes it clear that the promotion of Julian was prompted by the situation in Gaul, and that his functions would be to expel the invaders and restore the frontier (3). The choice was apparently astute. The revolts of Magnentius and Silvanus had shown the danger from powerful and successful generals (4). Julian, a young, inexperienced and apparently somewhat naive scholar, seemed innocuous, for he had shown so sign of ambition and should have been easy to control. Since he was a member of the family of Constantine, dynastic loyalty, strong towards that house, would ensure the support of the troops and curb the ambitions of the generals. Julian was probably regarded as a stop-gap, for Constantius still hoped for an heir. If the Emperor had one, perhaps he intended that Julian should suffer his father's fate (5).

Julian's initial function, though nominally military, was really that of a figurehead, chosen to parade around the dress and image of the Emperor whom he represented (6), and powerful only insofar as power was delegated to him by his master. Constantius was emphatic on this point: "I have not given the Gauls a king, but one who will convey to them my image" (7). And even within these limits

(1) JULIAN, *Ep. ad Ath.*, 275C-276D.

(2) XV, 8, 4-17.

(3) *Adesto igitur laborum periculorumque particeps, et tutelam ministerii suscipe Galliarum, omni beneficentia partes leuaturus afflictas* (*ibid.*, 3). On the tenor of the speech: I. B. PIGHI, *Nuovi studi Ammianei*, Milan, 1936, p. 54-6.

(4) Cp. LIBANIUS, *Or.*, 18, 31: *τῶν δ' ἐκεῖσε πεμπομένων στρατηγῶν μείζονα ἢ ἐξῆν ζητούντων* (this includes Silvanus).

(5) This follows C. DI SPIGNO, *Studi su Ammiano Marcellino. Il regno di Constanzo II* in *Helikon*, 2, 1962, p. 442-64. He accepts the report of Ammianus that Eusebia gave Julian's wife poison to prevent her giving birth (XVI, 10, 18-19). A son would have strengthened Julian's position. On Constantius' hopes for an heir: XXI, 6, 4 and PIGHI, *Nuovi studi Ammianei*, p. 48-50. Di Spigno rightly joins SOCRATES, 3, 1, followed and amplified by SOZOMEN, 5, 2, in rejecting the tradition that Julian was sent to Gaul to die, as in XVI, 11, 3; ZONARAS, 13, 10; LIBANIUS, *Or.* 18, 37; EUNAPIUS, *Vit. Soph.*, 476.

(6) JULIAN, *Ep. ad Ath.*, 277D-278A: *βαδίζειν εἰς τὰ στρατόπεδα τὸ σχῆμα καὶ τὴν εἰκόνα περιοίσοντι τὴν ἑαυτοῦ.* (Cp. LIBANIUS, *Or.*, 18, 42).

(7) *Ep. ad Ath.*, 278A: *καὶ γάρ τοι καὶ τοῦτο εἴρητο καὶ ἐγέγραπτο, ὅτι τοῖς Γάλλοις οὐ βασιλέα δίδωσιν, ἀλλὰ τὸν τὴν ἑαυτοῦ πρὸς ἐκείνους εἰκόνα κομιοῦντα.* Cp. XXV, 4, 25: *ad occiduam plagam specie Caesaris missus.*

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Julian could not be sure of his competence. He therefore asked for a written definition. Whether he received it is unknown (1). But clearly the competence was strictly military (2). In the inaugural speech the only word of civil administration was a guarded hint for the future : "With equal moderation and piety we together shall rule a world at peace, if only God grant our prayers" (3).

Julian reached Vienne in winter and prepared for the campaign of 356, in which he was wisely allowed only a subordinate role, as he himself complains (4). The narrative of Ammianus is here none too reliable, since admiration for his hero leads him to magnify Julian's part in the proceedings of this year, even to the extent of placing here his recapture of Cologne, dateable, according to Julian, to 357 AD. (5). Zosimus condenses his source overmuch and omits the campaign of 356, giving Julian supreme command straightaway (III, 3, 1). But it is clear that on the whole the Caesar had to be content with the role of figurehead and with gaining experience.

Nevertheless, the year was successful and for the next it was decided to give the supreme command to Julian, who had shown up well in contrast with the generals (6). Friction with one of them, Marcellus, led to his dismissal (7). Constantius' friendly intent towards Julian is shown by the substitution of the competent and obedient Severus (8). Ursicinus, the other senior officer in the area, was also removed and sent to the East. A replacement came with reinforcements from Italy, Barbatio, who proved to be an enemy (9).

(1) *Ep. ad Ath.*, 282B. Perhaps it was contained in a booklet written by the Emperor for Julian, noted in XVI, 5, 3 (but VALESIUS, *ad. loc.* in WAGNER-ERFURDT II, p. 182-3, has another explanation of this passage).

(2) PHILOSTORGIUS, 4, 2 ; L. VALENSI, *Quelques réflexions sur le pouvoir impérial d'après Ammien Marcellin* in *Bulletin de l'Association G. Budé*, sér. 4, 16, 1957, p. 80-84.

(3) XV, 8, 14 : *una orbem pacatum, deus modo uelit quod oramus, pari moderatione pietateque recturi.*

(4) *Ep. ad Ath.*, 277D. Cp. EUNAPIUS, *frag.* 8a ; SOCRATES, 3, 1 ; SOZOMEN, 5, 2.

(5) XVI, 2-4. For the date 357 : JULIAN, *Ep. ad Ath.*, 279B.

(6) *Ep. ad Ath.*, 278D.

(7) K. ROSEN, *Studien zur Darstellungskunst und Glaubwürdigkeit des Ammianus Marcellinus*, diss. Heidelberg (privately published Mannheim, 1968), p. 80-2, suggests that the friction arose because even in 356 Julian was exceeding his brief.

(8) XVI, 4, 3 ; 7, 1-3. Severus : XVI, 10, 21 ; 11, 1 ; cp. LIBANIUS, *Or.*, 18, 48 ; SOCRATES, 3, 1.

(9) Ursicinus : XVI, 10, 21. Barbatio : XVI, 11, 2 ; 6 ff. Cp. J. BIDEZ, *La vie de l'Empereur Julien*, Paris, 1965², p. 149. Barbatio was not, strictly speaking, Ursicinus' successor

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The campaign of 357, under Julian's command, was still more successful (1). Cologne was recaptured and a spectacular victory won at Strasburg. The importance of the latter is not lost on Ammianus who relates it at considerable length. In order to be able to treat it as the climax of book 16 and to preserve the symmetry of the narrative structure, the historian relegates the rest of the year's achievements to the next book (2). And he is not mistaken in his judgement, which was probably Julian's own as well (3). Strasburg was an important victory which, in the short term at least, turned the tide of barbarian success and helped to restore confidence to the provincials and the army (4). For Julian personally it was also important, since it gave him confidence and prestige. Here for the first time, and foreshadowing the future, his troops hailed him Augustus (XVI, 12, 64). Socrates (3, 1) actually promotes him to the rank of Augustus directly after, and as a result of, this victory. That was not so, but very soon afterwards Julian clearly began to take a more independent line as Caesar, the first traces of which appeared during the subsequent winter.

So far Ammianus has recorded nothing but military activity. Acts in the civil sphere have been mentioned in XVI, 5, 9 ff., but the passage is anecdotal and not anchored to a specific time. If anything, Ammianus seems to refer forward : *quaeue... aut in re ciuili magnanimitate correxit et libertate, suo quaeque loco singulatim demonstrabuntur.*

However, during the next winter (357-8), the first of three which Julian spent at Paris, Florentius, the Praetorian Prefect, proposed a

in office, since he was *magister peditum*, whereas Ursicinus had served in the West with his old rank of *magister equitum per Orientem* : see H. NESSELHAUF, *Die spätrömische Verwaltung der gallisch-germanischen Länder* (*Abhandlungen der preussischen Akad. der Wiss.*), Berlin, 1938, p. 30 and, at greater length, E. FRÉZOULS, *La mission du magister equitum Ursicin en Gaule* (*355-357*) *d'après Ammien Marcellin* dans *Hommages à Albert Grenier* (*Coll. Latomus*, 58), II, Bruxelles, 1962, p. 673-88.

(1) XVI, 11 ; 12 ; XVII, 1-2.

(2) On the symmetry : I. B. PIGHI, *I Discorsi nelle Storie di Ammiano Marcellino*, Milan, 1936, p. 65-70. In books XVI and XVII the events are divided into four spheres : those concerning Julian (J), Constantius (C), those in the East (E), and those at Rome (R). The structure of the books is as follows : XVI — J, C, E, C, J. XVII — J, R, C, E, J, R, C, E.

(3) Cp. MAMERTINUS, *Grat. Act.*, 4, 3 ; JULIAN, *Ep. ad Ath.*, 279B-C.

(4) Note Ammianus' emphasis upon the number of the slain in XVI, 12, 63 (not common in his history) and upon the ineptitude of Constantius (*ibid.* 67-70). Cp. XX, 5, 5.

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superindiction to meet the needs of the army (1). This was the usual course, but Julian opposed it. The Prefect hinted strongly that Julian had no authority over him in the matter and complained that *se repente factum infidum, cui Augustum summam commiserit rerum* (XVII, 3, 4). When the matter was referred to Constantius, Julian prevailed by showing that the present taxes were sufficient and by pleading for the provincials (in short *animi firmitate*, *ibid.*, 5). Florentius was antagonized and the argument dragged on for a long time (*diu*). Julian himself seems to confirm that he could only oppose Florentius with his determination and prestige, since he was restricted by his own position : ὑπὸ δὲ τῶν κατεχόντων [*mss.* ἐχόντων] ἡμᾶς πραγμάτων (*Ep.*, 4, 385A). Finally, to prove his point further, the Caesar obtained control of the administration of Belgica II, for which he entreated the Prefect (2).

Such were Julian's activities in civil government during the winter 357-8 AD. It appears that he did not act by virtue of his power as Caesar, but firstly by arguing his case to Constantius and then by entreating the Prefect for Belgica II.

The campaigning season of 358 brought more military success and during the subsequent winter there was more civil activity of an increasingly independent nature. Ammianus lists some of the business (XVIII, 1) : attempts to provide for fair distribution of the tribute, to protect small landowners against the *potentiores*, to ensure honest judgements by provincial governors. Julian himself judged civil suits, including one against a governor accused of embezzlement (3). During this winter there is no indication that he acted on any authority other than his own.

The summer of 359 was yet another satisfactory one in the field, and the following winter witnessed the final development of Julian's increasing independence, his elevation to the rank of Augustus. Julian and friendly sources represent it as a spontaneous act of the

(1) *Conquisita* (XVII, 3, 2), later called *indictionale augmentum* and *incrementa* (*ibid.* 5). These expressions I take to refer to the same thing, i.e. a superindiction (see VALESIUS, *ad. loc.* = WAGNER-ERFURDT, II, p. 249, 250).

(2) *Id petendo Caesar impetrauerat a praefecto*, XIV, 3, 6. LIBANIUS, *Or.*, 18, 84, says that on one occasion Florentius was accused of a corrupt decision. The prefect asked Julian to try the case, which he refused : ὁ δὲ τὰ πρῶτα ἔφευγεν, οὐ γὰρ αὐτῷ καὶ τοῦτο δεδόσθαι.

(3) XVIII, 1, 4.

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troops (1), who may well by now have come to resent the leadership of a mere Caesar (2). Constantius was inclined to favour the eastern part of the Empire, and a flare-up of the old western hostility against the East, fed by the resurgence of Gallic pride and nationalism after the successes under the leadership of Julian, is quite possible. Ammianus gives as the reason for the revolt the demand of Constantius that the western troops be sent to the East to reinforce his army against the Persians (3). This might, as Ammianus claims, have been a move to weaken the now ominously powerful Julian. The Emperor apparently proceeded in a similar fashion against Gallus, and he must have been alarmed by the continuing reports of the successes of his Caesar, which were coloured by the tales of his sycophants and the agitation in the eastern provinces both for and against Julian (4). On the other hand, having experienced the valour of the Gallic troops when they were fighting for Magnentius at Mursa and knowing how well they defended Amida for himself, he had a genuine admiration for them. And he was short of men (5).

I. Mueller-Seidel has argued, however, that Julian's whole military policy in Gaul was directed towards a strengthening of the border and the establishment of the provinces as a base for hostile action (6). Julian certainly resented his rank as Caesar and the restraints placed upon him (7) ; and Constantius seems to have feared that he would revolt, a fear which turned out to have been well founded. The western military was ready for revolt and so was Julian. Lupicinus, who was loyal to the Emperor, had been moved well out of the way to Britain (8). The troops to be sent to the East were routed through

(1) JULIAN, *Ep. ad Ath.*, 282C ff. ; ZOSIMUS, III, 9, 2 ; AMMIANUS, XX, 4 (cp. 8, 7-8). LIBANIUS, *Or.*, 12, 58 ; 13, 33-4 ; 18, 95 ff.

(2) Cp. XX, 8, 7 ; LIBANIUS, *Or.*, 13, 33 ; ZONARAS, 13, 10.

(3) XX, 4, 1-2.

(4) Troops taken from Gallus : XIV, 7, 9. Detractors of Julian : XVI, 7, 1-2 ; 12, 67 ; XVII, 11 ; XVIII, 3, 6 ; XX, 4, 1-2. Agitation : BIDEZ, *op. cit.*, p. 177-9 ; ALLARD, *op. cit.*, I, p. 472-3.

(5) Mursa : ZOSIMUS, II, 50 ff. Amida : XIX, 6 (cp. XV, 12, 3 and ALLARD, *op. cit.* I, p. 480-1). On the shortage of men, see p. 467-68. LIBANIUS in his partizan ORATION, 18, 91 says that he had sufficient.

(5) *Die Usurpation Julians des Abtrünnigen im Lichte seiner Germanenpolitik* in *H. Z.*, 180, 1955, p. 225-44.

(7) JULIAN, *Ep.*, 4 (ed. Wright) to Oribasius, 358-9 AD.

(8) MUELLER-SEIDEL, *art. cit.*, p. 228.

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Paris where Julian was staying. This route was suggested by the notary Decentius, who had been sent by Constantius to conduct the soldiers to the East (XX, 4, 2). This routing is explained by sources friendly to Julian (an explanation accepted by modern authorities) as a stupid error ; but it is hard to accept as such. More likely Decentius himself was in sympathy with Julian. He chose a route which Julian himself is said to have openly advised against (1) and which was so to the latter's advantage that no enemy would have failed to avoid it. Decentius himself was a pagan and, of all the so-called bitter enemies of Julian, was one who survived unscathed, re-appearing as Master of the Offices in 364 AD. (2). He seems to have been a natural ally for Julian.

There are two obstacles to this theory. Firstly, why do the pro-Julian sources represent Decentius as the enemy of Julian who certainly intended no advantage for the latter when he routed the soldiers through Paris ? Secondly, why does Julian openly declare in his *Letter to the Athenians* (283 C) that Decentius was an enemy ? In answer to the second point, Julian, when he wrote to the Athenians, had to take this position since Constantius had not yet died and Decentius had returned to his court (3). On the first point, the pro-Julian sources try to show that Julian revolted only under compulsion so that they could hardly represent Decentius as routing the troops through Paris to further the usurpation.

When the soldiers entered Paris, Julian showed himself to them — an obviously inflammatory move — and then invited their officers to dinner, a suspicious action in such tense circumstances ; later the issuing of a similar invitation was one of the reasons for the murder of a certain Jovian, a namesake and, it was feared, a rival of the newly acclaimed Emperor (4). Zonaras actually reports that Julian won over some officers (5). Indeed even the unwillingness of the western troops to move to the East, the alleged cause of the revolt, is not without suspicion. Soon the Gallic army was to march against Constantius and later into Persia, apparently quite willingly (6).

(1) LIBANIUS, *Or.*, 18, 96.

(2) See O. SEECK, *Die Briefe des Libanius*, Leipzig, 1906, p. 117.

(3) XX, 8, 4.

(4) Meeting the soldiers : XX, 4, 12. Invitation to dinner : XX, 4, 13. Death of Jovian : XXV, 8, 18.

(5) *τινας τῶν ὑπ' αὐτὸν ταχιαρχῶν ὑπελθών*, 13, 10.

(6) XXI, 5, 9 ; XXV, 6, 13 ; XXII, 5, 25 ; cp. S. JANNACCONE, *Ammiano Marcellino*,

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According to the present reconstruction Constantius' concept of the office of Caesar was, at least in the case of Julian, as a sort of military assistant to the Emperor, possessing only delegated powers, not clearly defined but dependent upon the will of the Augustus. (1) Ammianus on a number of occasions mentions the assistant-nature of the position (2). Moreover, he tells us that when Constantius gave orders for Gallic troops to be sent to the East, he told not Julian but Lupicinus and Sintula to select the men, thus asserting the power to delegate of his own primacy (XX, 4, 3), a primacy which is expressed in official terminology as the authority of a father over his son (3). Both Ammianus and Julian complain that after the battle of Strasburg Constantius refused Julian a triumph and claimed for himself all the glory of the victory (4). This, however, was always customary in the case of a subordinate, who fought under the auspices of his Emperor. During the Principate it is reflected in the attitude of Tacitus' Germanicus who, after a victory, raised a trophy with the words (amongst others) *exercitum Tiberii Caesaris* on it and no mention of himself (5). For the fourth century Ammianus (XXX, 7, 7-11) lists the victories won by Valentinian I, adding only at the end of the passage that most of them were won by his generals (6).

Constitutions were issued in the name of the Emperor and Caesar (7), but this was a formality, for the legislation always emanated from the senior. In fact the only evidence of independent power for Julian is a statement found in Zosimus : *Κωνστάντιος τοίνυν ἐπιτρέψας ἅπαντα τῷ Καίσαρι πράττειν* (III, 3, 1 ; cp. 8, 2). However, this

Naples, 1960, p. 35 ff. Gregory NAZIANZENUS, *Or.*, 4, 65-7, predictably says that Julian planned the revolt. E. A. THOMPSON, *Three Notes on Julian in 361 AD* in *Hermathena* 62, 1943, p. 88, n. 10, suggests that the troops were persuaded to go East by a combination of Julian's oratory and specific promises.

(1) Cp. MUELLER-SEIDEL, *art. cit.*, p. 228-9 ; K. ROSEN, *op. cit.*, p. 77-9 ; J. R. PALANQUE, *Collégialité et partages dans l'Empire romain au IVe et Ve siècle* in *R.E.A.*, 46, 1944, p. 48.

(2) XIV, 11, 10 ; XVI, 7, 3 ; XX, 8, 6. Cp. XVII, 11, 1 ; VICTOR, *Caes.* 42, 18 ; W. SESTON, *L'humiliation de Galère* in *R.E.A.*, 18, 1940, p. 514-9 ; J. STRAUB, *Vom Herrscherideal in der Spätantike*, Stuttgart, 1964 (1939), p. 44-7, 57-8.

(3) J. STRAUB, *op. cit.*, p. 46-7.

(4) XVI, 12, 67 ff. ; JULIAN, *Ep. ad Ath.*, 279C. Cp. LIBANIUS, *Or.*, 18, 67, on Constantius' pride after Strasburg.

(5) *Annals*, II, 22, 1-2.

(6) On Julian under the auspices of Constantius, see J. STRAUB, *op. cit.*, p. 56-57.

(7) E.g. *C. Th.*, XV, 12, 2 ; 14, 5.

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is carelessness and is refuted by an earlier remark of the same writer that Constantius "sent with him Marcellus and Sallustius, giving to them and not the Caesar the government there" (1).

In keeping with this situation Julian began his career as the effective subordinate of the Masters of the Soldiers, but of course outside the regular hierarchy of command. He was soon allowed to surpass them and, gradually achieving greater independence, he took upon himself civil competence, not by virtue of his rank as Caesar and by the will of the Emperor, but as an individual of increasing personal prestige and power and seemingly without the consent of Constantius, who was rightly worried by Julian (cp. XX, 4, 1-2). Such a growth of Caesarian power had happened at least once before, in the case of Galerius, who, after his victory over the Persians, was in a position to be able to demand of Diocletian that he persecute the Christians (2).

Once this process of accumulation and diversification of powers had begun, Julian could hardly have arrested it, even had he wished to ; and it is reasonable to assume that he saw quite clearly that ultimately he would have the choice of usurpation or political and perhaps physical annihilation. The development of powers suggested was quite likely to result from the vague definition and military nature of the position of Caesar. Roman fiscal organization was such that the finance and supplies needed by the armies were collected through the office of the (at the time) wholly civilian Praetorian Prefect (3). Inevitably the generals, since they were profoundly affected by, took a close interest in, the activities of the Prefect. Clashes of interest led to friction, usually over the problem, which Julian himself experienced, of obtaining the necessary supplies for the soldiers (4). Ammianus gives an example of the danger which this friction could bring for the Prefect. In 354 AD. the Praetorian Prefect of Gaul, Rufinus, was forced to go before the troops, to explain why the supplies were late (XIV, 10, 3-5). It was expected that they would kill

(1) III, 2, 2 : *συνεκπέμπει Μάρκελλον αὐτῷ καὶ Σαλούστιον, αὐτοῖς, καὶ οὐ τῷ Καίσαρι, τὴν αὐτόθι καταπιστεύσας διοίκησιν.* When Zosimus says later (III, 5, 4), *τὰ μὲν ἐπιτεταμμένα πάντα τῷ Καίσαρι καθ' ἑκάστην ὡς εἰπεῖν ἐλάμβανεν οὐκ ὀλίγην ἐπίδοσιν,* he mentions only things related to military activity.

(2) Lactantius, *De mortibus persecutorum*, 9 ff.

(3) A. H. M. Jones, *op. cit.*, I, p. 448 ff.

(4) XVII, 9, 3 ; Zosimus, III, 5, 1.

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him. There were a number of clashes between Julian and Florentius, one over the superindiction, another over the payment of tribute to a German tribe (1).

Further, the practice of quartering troops and their officers on the towns for the winter months led not only to scandals and abuses, but also to close and prolonged contact between soldiers and civilians. Since there was a tendency, especially in the West, for real political power to accumulate to the generals, they were naturally drawn into local disputes, even of a wholly civil nature (2). As this happened in the case of *magistri* and even lower-ranking officers, it was almost inevitable in the case of a Caesar, connected by blood or marriage (frequently both) to the reigning dynasty, thought likely to succeed (3), overwhelmingly prestigious and of vaguely defined and, to the majority, improperly understood competence. It would have taken an extremely firm and unambitious man to avoid the pitfalls. Later the danger was recognized. Symmachus says of the co-optation of Valens by his brother Valentinian I, *huic accedit quod cum duo sint in imperio gradus, ilico in germanum et pariter contulisti, quod noueras bis posse praestari... ergo Augustum pari iure confirmans curasti ne umquam tibi suspectus esset, cui non reliquisti quod ultra optare deberet,* (*Orat.*, I, 11). In retrospect Constantius' settlement was doomed from the start.

(1) For the superindiction see p. 448-49. The tribute to the Chamavi : JULIAN, *Ep. ad Ath.*, 280 A-C. For a third clash : L. DE VOS, *L'Empereur Julien et le préfet Florentius* in *RPh*, 34, 1910, p. 156-8.

(2) Abuses : *C. Th.*, VII, 9, 1 ; 2 (340 AD.). Soldiers in civil offices : *C. Th.*, VIII, 7, 12 ; 13 (372 AD.). On the contacts between soldiers and civilians : R. A. MACMULLEN, *Soldier and Civilian in the Later Roman Empire*, Cambridge Mass., 1963. Cp. on the meddling of *duces* in local affairs in the East R. A. PACK, *Studies in Libanius and Antiochene Society under Theodosius*, diss. Michigan, 1935, p. 15-16.

(3) A hint of future power for Julian : XV, 8, 14 translated on p. 447. PIGHI, *Nuovi Studi Ammianei*, Milan, 1936, p. 57-58, suggests that the dynastic idea has been expressed by Constantius earlier during the same ceremony, when he said, *ad honorem prope speratum exsurgat* (XV, 8, 10), and he rightly argues that there the reading of *MS.* V (*prope speratum*) should be kept. J. ČEŠKA, *De honore Iuliani apud Ammianum Marcellinum XV, 8, 10 prope sperato* in *Charisteria F. Novotný Octogenario Oblata*, Prague, 1962, p. 169-78, argues that there are two different nuances in the phrase : 1. the fears of Julian concerning his elevation (*spero* = *metuo*), 2. the dynastic expectations as envisaged by the audience. Češka is not convincing in his case for 1 ; 2 is sufficient.

For the importance of the dynastic idea, cp. XXVI, 7, 10, where the usurper Procopius parades about the infant daughter of Constantius to win the support of the soldiers.

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Ammianus gives a fairly clear description of events and some indication of a change in Julian's powers over the three winters at Paris. Why then is nothing of the above interpretation stated directly ?

Firstly, the historian is seeking to present Julian positively as an exemplar of certain "princely" virtues, and towards this end he draws a somewhat oversimplified, black and white picture of the relations between the two men (1), thus obscuring the greater complexity of the case. Secondly, for various reasons he is biassed towards Julian and, in view of his own theory of imperial legitimacy, which rejects the claims of usurpation (2), he must whitewash him in the account of the dealings with Constantius. Thirdly, since Ammianus himself left for the East with Ursicinus before the battle of Strasburg, he would not himself have had a clear idea of the significance of events and probably relied upon pro-Julian sources (3). All these considerations militate against objectivity.

The concept offered of the functions of the Caesar is by no means unique. It appears to have been Diocletianic. W. Seston's description of Diocletian's organization of the tetrarchy makes it clear that under his system the Caesars were regarded only as assistants to the Emperors with no legislative or administrative powers. These were the prerogatives and major distinguishing marks of the two Augusti (4). The fourfold division of the Empire was meaningful only insofar as it demarcated the areas where the four rulers might recruit their troops and obtain their supplies. Legislatively and administratively the Empire was still a unit under Diocletian (5). The Caesars especially were mobile. Galerius, the "ruler" of the Balkans, was sent by Diocletian against the Persians — the very example which Constantius cites to Gallus to prove this mobility (6).

That is not to say that the Caesars did not possess real power in the territory with which they were associated, even while Diocletian

(1) See Blockley, Nottingham, 1970, p. 121-2.

(2) See Blockley, Nottingham, 1970, p. 143-5.

(3) Ursicinus goes East : XVI, 10, 21. Cp. Pighi, *Nuovi Studi Ammianei*, Milan, 1936, p. 79-80.

(4) Lactantius, *De mort. pers.*, 18 : *ut duo sint in republica maiores, qui summam rerum teneant, item duo minores, qui sint adiutamento.* W. Seston, *Dioclétien et la Tétrarchie*, Paris, 1946, p. 237-9, 242. Cp. J. R. Palanque, *art. cit.*, p. 48-9.

(5) Seston, *op. cit.*, p. 244-5 ; Palanque, *art. cit.*, p. 48-9.

(6) Ammianus, XIV, 11, 10 ; Lactantius, *De mort. pers.*, 9.

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still reigned (1). Constantius Chlorus certainly had a measure of real control, which he used to ease the lot of his Christian subjects during the persecution ordered by Diocletian (2). But this independence of action was a function of isolation and personal power, not a right inherent in the rank. Such real independence can be observed at times in the activities of many officials of the late Empire, even down to the provincial governor, as the ineffectual attempts of the laws to combat it prove.

The stability of the tetrarchy lasted only for a short while after the abdication of Diocletian and Maximian. Caesars were still appointed. Little is known of Severus, who was created Caesar, then Augustus on the death of Chlorus, and sent to Italy against Maxentius, where he lost his life (3). No administrative initiative is attributed to Maximin Daia when he was Caesar. He did initiate a fresh persecution of the Christians, but by then he had rejected the compromise title *Filius Augustorum* and had declared himself Augustus (4). Licinius never was a Caesar, but was named Augustus in 308 to replace Severus. Constantine I and Maxentius were not appointed within the Diocletianic framework, which had to be strained to accommodate them when they forced themselves upon it.

The sources for the period immediately following Diocletian's abdication are unreliable and fragmentary, and the argument concerning the Caesars' lack of civil competence is mostly *ex silentio*. The ground is only a little firmer for the reign of Constantine I (5).

Crispus, the eldest son of Constantine, was appointed Caesar in 317 AD. together with his half-brother Constantine II and Licinia-

(1) Eusebius, *HE.*, VIII, 13, 11, says: *καὶ διχῇ τὰ πάντα τῆς ἀρχῆς διαιρεῖται, πρᾶγμα μηδ' ἄλλοτέ πω πάλαι γεγονὸς μνήμῃ παραδεδομένον*, referring to the period just before the abdication of Diocletian. But he means that the Empire was divided not politically, but in respect of its treatment of Christians.

(2) Eutropius, 10, 1 ; Lactantius, *De mort. pers.*, 15 *ad fin* ; Eusebius, *Vit. Const.*, 1, 13 ; *HE.*, VIII, 13, 12-13.

(3) Declared Caesar : *Epit. de Caes.*, 40, 1 ; Victor, *Caes.* 40, 1 ; Eutropius, 10, 2 ; *Anon. Val.*, 3, 5 ; Zosimus, II, 8, 1 ; Lactantius, *op. cit.*, 18, 12 ; 19. Declared Augustus and sent against Maxentius : Lactantius, *op. cit.*, 25-6 ; Zosimus, II, 10, 1 (the title Augustus is confirmed by his coins). His death : Zosimus, II, 10, 2 ; *Anon. Val.*, 4, 9-10.

(4) Eusebius, *HE.*, VIII, 13, 15 ; *Vit. Const.*, 1, 58 ; Lactantius, *op. cit.*, 31 ff. ; Zonaras, 12, 32 (confusing Maximinus Daia with Galerius Maximianus). For the title *Filius Augustorum* : Lactantius, *op. cit.*, 32 ; *ILS*, 683.

(5) Eusebius, *HE.*, VIII, 13, 14 ; Lactantius, *op. cit.*, 20 ; *Epit. de Caes.*, 40, 2 ; Victor, *Caes.*, 40, 8 ; Eutropius, 10, 4.

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nus the son of Licinius. Crispus was then ten or twelve years old, Constantine a few days (or months), Licinianus just a child (1). By 326 Crispus had gained a considerable military reputation as a result of his success in the West against the barbarian invaders and the major role which he played in his father's war with Licinius, when he defeated the enemy fleet of Amandus (2). Again there is no word of administrative activity, and although the panegyrist Nazarius celebrates his military success, he says nothing to justify any claim for Crispus that he had administrative responsibility for the western part of the Empire (3).

In 326 Crispus was suddenly and mysteriously killed on his father's orders. Soon afterwards Crispus' stepmother, Fausta, was also put to death. Eusebius, the man well placed to know the truth, is silent. The other sources know nothing or repeat what was probably the official version, a story of guilty passion, in form a Phaedra myth : Fausta was in love with Crispus who rejected her. In anger she lied that he had seduced her and obtained his death. Upon discovery of the truth Fausta too was killed (4). A more plausible view is that the motives were political, perhaps dynastic (5). Constantine killed Crispus to clear the way for his three younger sons, half-brothers of the eldest, but probably themselves all of the same mother. He may well have feared that Crispus, older than they, famous and already powerful, would not permit the others to survive the death of their father, who thus eliminated the danger before it was too late.

To modify this theory slightly it might be suggested that what later developed between Julian and Constantius was also beginning to happen in this case. The military Caesar, once he had graduated

(1) Zosimus, II, 20, 2 ; *Anon. Val.*, 5, 19 ; *Epit. de Caes.*, 41, 4 ; Mommsen (ed.), *Chron. Min.*, I, 232. Crispus was born in 305 AD. (P. Guthrie, *The Execution of Crispus* in *Phoenix*, 20, 1966, p. 235) or 307 (Seeck, *Crispus* in *RE*, IV, 1722) ; Constantine : *οὐ πρὸ πολλῶν ἡμερῶν ... τεχθέντα* (Zosimus, *loc. cit.* ; Guthrie, *art. cit.*, p. 331, prefers a few months) ; Licinianus : *εἰς εἰκοστὸν προελθὼν μῆνα* (Zosimus, *loc. cit.* ; cp. *Epit. de Caes.* 41, 4 ; Orosius, 7, 28, calls him *adulescens*).

(2) Eutropius, 10, 6 ; Zonaras, 13, 2 ; *Anon. Val.*, 5, 23 ; 26-7 ; *Anon.* in C. Mueller, *FHG*, IV, p. 199 ; Julian, *Or.*, I, 9D ; Nazarius (*Pan, Lat.*, 4), 17 ; 36, 3-5.

(3) As Guthrie, *art. cit.*, p. 326, claims, referring to Nazarius, 17.

(4) Especially Zonaras, 13, 2. Other sources in Seeck, *Crispus* in *RE*, IV, 1724.

(5) *E.g.* C. N. Cochrane, *Christianity and Classical Culture*, New York, 1957, p. 207 ; Guthrie, *art. cit.*, who gives further references.

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from a figurehead to a real and successful general, began to find his power developing and spreading, and did nothing to stop it. The peculiar constitution issued by Constantine in 325, which rails against disloyalty and encourages informers, may well be, as Godefroy suspected and Gibbon suggested, an indication of tension and unrest, perhaps centred upon Crispus (1). According to this interpretation also the Emperor would have decided to remove Crispus before it was too late, but in this case he was concerned for his own power, rather than that of his sons.

In 335 AD. Constantine conferred the rank of Caesar upon his nephew, Delmatius (2). No acts, civil or military, are attributed to him by the sources. However in the settlement of the Empire he was given, according to the *Epitome de Caesaribus* (41, 20), Thrace, Macedonia, and Achaia to rule, in contradiction of the statement of a few lines before, which refers to the three younger sons of Constantine : *ita ad tres orbis Romani redacta dominatio est* (41, 19). The information that Delmatius was actually given territory to rule does not come from the fuller *Caesares* of Aurelius Victor, nor does Eusebius in his *Life of Constantine* mention Delmatius when he describes how the old Emperor divided up the rule of the Roman world amongst this three sons like a patrimony (3). Eusebius describes how at first the sons were guided in their respective portions of Empire by advisors (in the same way as Julian was), but later their father alone was teacher enough. Had Constantine intended Delmatius, who was never made Augustus (the sources are unanimous on that), to exercise administrative power over a part of the Empire, it is surprising that no mention is made of a similar training for him. Of course, since Eusebius was writing the *Life* after the death of Delmatius, his omission might have been merely politic (4). But the evidence of the *Epitome de Caesaribus*, which was probably compiled during the reigns of Hono-

(1) *C. Th.*, IX, 1, 4. E. GIBBON, *The Decline and Fall of the Roman Empire* (Everyman edition, 1910), chap. XVIII, p. 140 and n. 1.

(2) *Anon. Val.*, 6, 35 ; *Epit. de Caes.*, 41, 15 ; VICTOR, *Caes.*, 41, 15 ; SOZOMEN, 5, 2 ; ZOSIMUS, II, 39, 2 ; *Paschal Chronicle*, a. 335 ; *CIL*, X, 8021 ; *ILS*, 718-20 ; CEDRENUS (*P.G.* 121), col. 565.

(3) *Vit. Const.*, 4, 51 : τινα πατρῴαν οὐσίαν.

(4) In the *de Laud. Const.*, 3, 2, Eusebius mentions the appointment of two Caesars other than the sons of Constantine, certainly meaning Delmatius and Hannibalianus. He gives to neither any territory.

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rius and Arcadius, is not good by itself, and no other sources give Delmatius sovereignty over any part of the Empire. Eutropius says of Constantine, *is successores filios tres reliquit atque unum fratris filium* (10, 9), but makes no specific mention of any fourfold territorial division. Zosimus says that Constantine's three sons shared power with Delmatius, Constantius (the brother of Constantine I) and Hannibalianus, using of the latter three the phrase, *συνῆρχον δὲ αὐτοῖς* [i.e. Constantine's sons] *τρόπον τινά* (1). The inclusion of Julius Constantius indicates that Zosimus here means a sharing of political power, not of territory, the latter having been divided up three ways amongst the three sons of Constantine in the same passage, just prior to the phrase quoted.

The Anonymus Valesianus preserves the correct account of the settlement : *itaque Gallias Constantinus minor regebat, Orientem Constantius Caesar, Illyricum et Italiam Constans, ripam Gothicam Dalmatius tuebatur* (6, 35). That is to say, the three sons were to rule the Empire (*regere*), while Delmatius was merely a soldier guarding (*tueri*) the lower Danube, with adjacent parts of the Empire assigned to him for recruiting and supplies — the Diocletianic arrangement again. Constantine's plan was therefore to establish one guardian for each of the vital borders : Constantine II on the Rhine, Constans the upper Danube, Delmatius the lower Danube, Constantius II for most of the eastern frontier. To these should be added Hannibalianus, the brother of Delmatius, said to have been created not Caesar but *Rex*, who was set over some eastern districts (importantly Lesser Armenia and Cappadocia) to defend the Armenian border as a client king (that is to say, outside, though subordinate to, the imperial system) (2).

(1) Zosimus, II, 39, 2-40, 1.

(2) Ammianus, XIV, 1, 2 ; *Anon. Val.*, 6, 35 ; *Epit. de Caes.*, 41, 20 ; *Paschal Chronicle*, a. 334 ; Seeck, *Hannibalianus* in *RE*, VII, 2352. N. H. Baynes, *Rome and Armenia in the Fourth Century* in *EHR*, 25, 1910, p. 627-8, makes the attractive suggestion that Hannibalianus was appointed king of Rome's ally Greater Armenia as a temporary replacement for king Tiranes who had been captured by the Persians. If so, it would be possible to square the title *rex* with Eusebius' mention of his appointment as Caesar by the conjecture that *rex* refers only to his temporary kingship and Caesar to his defence of the eastern border provinces with exactly the same military status as Delmatius and with territories assigned to him for recruiting and supplies. The coins of Hannibalianus, *siliquae* and *folles* and all from the Constantinople mint (the *siliquae*, according to *R.I.C.*, VII, p. 589, being r^2 to r^5 rarity), name him only *rex*.

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The plan was foiled by the general massacre of potential rivals which followed the death of Constantine and claimed the lives of his two nephews (1).

Constantine appears to have adopted a somewhat different course with his three surviving sons. In the passage quoted above (*Vit. Const.*, 4, 51) Eusebius gives more information on the settlement. Constantine shared out the palace troops, the *domestici*, legions, auxiliaries and generals. He also allowed his sons some independence of action. Eusebius is emphatic upon this point, and he seems to mean civil as well as military action. Towards the end of their father's reign Constantine and Constantius were certainly old enough to have undertaken this responsibility, since both were born 316-317 AD. (2). Eutropius gives some confirmation of this arrangement, saying that *eo tempore res Romana sub uno Augusto et tribus Caesaribus quod numquam alias fuit, cum liberi Constantini Galliae, Orienti, Italiaeque praeessent* (10, 6) (3). On the other hand a passage of Julian (*Orat.*, I, 13B) emphasizes, in the case of Constantius Caesar, his mobility (which makes the possession of administrative power less likely), when it says that Constantius gained military experience in Gaul before moving to the East, after the manner of a Diocletianic Caesar. In the same oration (12A) Julian says that Constantius was φύλαξ καὶ βασιλεύς of the Gauls, the part of the Empire which finally fell to Constantine II. However, Julian only notes military activity.

Assuming therefore that Constantius was not sent out to campaign in Gaul until he was fourteen or fifteen years old (331-2 AD.), where he would have spent at least one year, the final settlement will not have been made until after 332-3, and probably after 333 AD., when Constans was created Caesar.

(1) Zosimus, II, 40 ; Julian, *Ep. ad Ath.*, 270C-271B ; Victor, *Caes.*, 41, 22 ; Eutropius, 10, 9 ; Socrates, 2, 25 ; Sozomen, 5, 2 ; Jerome, *Chron.*, a. 343 ; Cedrenus (*PG.* 121), col. 568.

(2) *Constantinus* 3 in *RE*, IV, 1026 ; *Constantius* 4 in *RE*, IV, 1044.

(3) The *Paschal Chronicle* in three places names sons of Constantine as *Augusti* before their father's death : *a. 325, Κωνσταντῖνος ὁ εὐσεβέστατος Κώνσταντα τὸν ἑαυτοῦ υἱόν, Καίσαρα ὄντα ἀνηγόρευσεν Αὔγουστον πρὸς ἴδων νοεμβρίων ; a. 330, Κωνσταντῖνος ὁ εὐσεβέστατος πατὴρ Κωνσταντίνου νέου Αὐγούστου καὶ Κωνσταντίου καὶ Κώνσταντος Καισάρων ; a. 335, καὶ Κώνσταντα τὸν υἱὸν αὐτοῦ Αὔγουστον ἀνέδειξεν.* The source is not good, as can be seen even from the words quoted. But the mistake, repeated thrice, is unusual and might find its origin in some alteration of the status of the Caesars which would bring it closer to that of an Augustus, i.e. administrative powers.

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No specifically civil action is attributed to any of Constantine's three sons while they were still Caesars. Nevertheless, it is possible that, having initially utilized the Diocletianic concept of a Caesar, Constantine modified it, allowing at least his two elder sons some administrative (but not legislative) power. Such a modification is comprehensible at the period of the reign when it was made. Constantine was old and the final settlement had to be made. Full powers at this time ensured smooth transmission, a consideration which was not of such importance when Constantine first created Caesars.

Constantius, who was not concerned with the succession when he appointed Gallus and Julian, reverted to the Diocletianic Caesar. If this latter concept of the status of the Caesar is applied to Ammianus' description of the career of Gallus, the relations between him and Constantius will become clearer.

Gallus was sent to the East as Caesar for a specific military purpose, to contain the Persian threat. After a reign of three years he was recalled and put to death. The reason is never clearly stated by Ammianus, although he emphasizes Gallus' savagery and cruelty, and seems to suggest that Constantius was afraid that the East would be thrown into turmoil if he were allowed to continue to reign (1), an explanation frequently accepted. Other sources accuse Gallus himself of aspiring to revolution (2), and from Ammianus' account it appears that at the time of their arrest some, at least, of the plotters were seeking evidence of treasonable activity on the part of the Caesar. But the historian contents himself with the remark *si plus ualuisset, ausurus hostilia in auctorem suae felicitatis* (*ut uidebatur*), implying that he did not (3).

However, if the Caesar were regarded as solely a military functionary, with powers not precisely defined but limited by the will of the Emperor, then a glance at the narrative will reveal the reason for Gallus' recall. At the very outset Ammianus unequivocally states

(1) XIV, 7, 9 ; 11, 1 and 21-3. Cp. XXI, 13, 11 ; VICTOR, *Caes.*, 42, 12 ; ZONARAS, 13, 9. OROSIUS, 7, 29, uses the ambiguous word *tyrannice*.

(2) EUTROPIUS, 10, 13 ; SOCRATES, 3, 24 ; SOZOMEN, 4, 7 ; THEOPHANES (ed. de Boor) p. 41 and possibly OROSIUS, *loc. cit.*

(3) XIV, 1, 1. Cp. XIV, 11, 8 : *principem locum, si copia patuisset, clam affectabat*, which implies that he was looking for an opportunity, which never appeared. XIV, 10, 5 : *exitiosa coeptantem* is ambiguous.

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that Gallus exceeded his delegated power (1), and it is clear that there was considerable and violent interference in civil affairs.

The first section devoted to Gallus offers little concrete except for Thalassius' provocative opposition to him (XIV, 1, 10) and the execution of Clematius, carried out, however, by Honoratus, the Count of the East (*ibid.*, 3) (2). In XIV, 2, 20 Gallus commands the Count of the East, Nebridius, to help against the Isaurian brigands. In XIV, 7 he comes into his own.

When he was about to leave Antioch for Hierapolis and the Persian front, the commons begged Gallus to save them from an impending famine. Ammianus complains that he merely pointed to (3) Theophilus, the governor of Syria, who was standing nearby, and told the crowd that no-one would lack food if the governor did not wish it. In referring the matter to the governor, who was ultimately responsible for ensuring the proper collection of the *annona* for the people of Antioch (4), Gallus was acting perfectly correctly. But in the inflamed situation this action and the language reported were provocative, and when the famine grew worse (presumably while Gallus was at Hierapolis), a mob burnt down the house of Eubulus, one of the civic leaders (5), and murdered the governor. Unless religious strife was involved, the city mobs were usually quiet if kept well supplied with food, drink and amusements. But if not, violence was frequently directed against those thought responsible, as at Rome where supply lines were often endangered and with them the Urban Prefect (6).

(1) XIV, 1, 1 : *ultra terminos potestatis delatae procurrens.*

(2) LIBANIUS, *Ep.*, 693, supports Ammianus' claim that Clematius was unjustly killed.

(3) Thus, with Yonge, I would translate *Theophilum... dedit*, and not "delivered up" as Rolfe (cp. Seyfarth's *lieferte*). Had Gallus delivered him up, it is likely that he would have been attacked straightaway, or if not, have left town. When Theophilus had been trampled Ammianus complains, *ut sibi* [i.e. the mob] *iudicio imperiali addictum* [i.e. *Theophilum*], which is ambiguous. For *do* = *ostendo*, see *T.L.L.*, *s.u. do*, 2, I, D, 2.

(4) For the role of the governors in the collection of the *annona* and the levying of emergency superindictions (the latter forbidden by Constantius II without reference to the Praetorian Prefect : *C. Th.*, I, 5, 5), see A. H. M. JONES, *op. cit.*, I, p. 450-1, and cp. AMMIANUS, XXVIII, 1, 17-18.

(5) Eubulus was an enemy of Libanius : LIBANIUS, *Or.*, 1, 116 and A. F. NORMAN, *Libanius' Autobiography*, London, 1965, p. 172 ff.

(6) XIV, 6, 1 ; XXVII, 3, 4 and 8-10. In general on the situation at Rome : J. R. PALANQUE, *Famines à Rome à la fin du IVe siècle* in *REA*, 33, 1931, p. 346-56 and H. P. KOHNS, *Versorgungskrisen und Hungerrevolten im spätantiken Rom* (*Antiquitas* VI, pt. 1), Bonn,

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On the present occasion the outburst seems to have released the required corn. At least nothing more is heard of this famine.

Gallus himself had intervened in the matter since it vitally concerned him as a soldier. He was preparing to go to Hierapolis and probably had troops concentrated at Antioch. Prices always tended to rise when soldiers were in the area, and the shortage made things worse and was itself made worse by the presence of the troops (1). Local large landowners, who were also curials, scenting profits hoarded their grain and forced up the prices (2). Ammianus complains that Gallus did not bring in supplies from outside (3) ; but firstly he might not have had the power to do this, and then it would probably have achieved little. Since there appears to have been no rationing, speculators could have bought up the grain and sold it outside Antioch at a profit, at the same time keeping their own prices high. This is what happened later when Julian tried to meet a similar situation by importing low priced grain into the city (4). Moreover, if Gallus was hurrying to Hierapolis, he could not afford to wait for supplies, which were needed by his army, to come in from elsewhere if he suspected that they were available on the spot. Therefore, he took a swifter course, which, it has been suggested (5), Julian should have taken to ensure success in the shortage which he had to face at Antioch. When the curials refused to lower the price, Gallus con-

1961. On the regularity of such famines : M. I. ROSTOVTZEFF, *Social and Economic History of the Roman Empire*, Oxford, 1957², ch. 5, n. 9.

(1) Cp. P. DE JONGE, *Scarcity of Corn and Corn Prices in Ammianus Marcellinus* in *Mnemosyne*, ser. 4, 1, 1948, p. 240-2.

(2) That grain was around can be inferred from XIV, 7, 2, where Gallus tells the senate to lower the price.

(3) XIV, 7, 4. The imported grain would have been sold at a low price, not given away. A special fund existed for such purchases : AMMIANUS, XXVIII, 1, 17-18 ; P. DE JONGE, *A Curious Place in Ammianus Marcellinus dealing with Scarcity of Corn and Corn Prices* in *Mnemosyne*, ser. 4, 1, 1948, p. 73 ff., 79-80.

(4) On Julian's experience : JULIAN, *Misopogon*, 368B-370A ; SOCRATES, 3, 17 ; SOZOMEN, 5, 19 ; John CHRYSOSTOM, *In Ep. I ad Cor. Homily*, 39, 7 ; the articles of de Jonge cited in notes 1 and 3 ; G. Downey, *The Economic Crisis at Antioch and Julian the Apostate* in *Studies in Roman Economic and Social History in Honour of Allan Chester Johnson*, Princeton, 1951, p. 312-21. LIBANIUS, *Or.*, 15, 23, admits that there was speculation on that occasion, but elsewhere (*Or.*, 16, 24) says that the retailers and not the decurions were to blame. In order to get things done Julian, like Gallus, had to do them himself : AMMIANUS, XXII, 14, 1.

(5) G. DOWNEY, *op. cit.*, p. 320-1.

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demned all the leaders of the senate to death together. Ammianus has separated this action from the rest of his account of the food riots, perhaps because he wished to use it to emphasise another point of censure — that Gallus condemned these people *all under one writ* instead of dealing with them individually (1). However, it is certainly connected with the rest of the account.

This act of Gallus has been taken as proof of his innate savagery. Arguably it was irresponsible, but it might have been a bluff, and there was a precedent for it. The decree was merely a cruder form of the procedure adopted by Diocletian in his Edict on Maximum Prices, where he enjoined the death penalty for failure to comply with its provisions. It is unlikely that such a measure would have unduly worried Constantius. Gallus' real crime, in the Emperor's eyes, was not his savagery or his condemnation of the curials, but that he had acted in an area where he had no competence, the civil jurisdiction.

Constantius received reports, possibly somewhat distorted, of these happenings. In his isolated position he had no reason to doubt them and no means of checking them, had he done so. These, when added to the reports of Thalassius (partly false, as Ammianus admits), determined him to recall Gallus from Antioch to Italy (2). This move can be explained as an attempt to forestall alienation and possible revolution in the East against the dynasty which might have resulted in usurpation by a powerful officer like Ursicinus (3). Such fears may well have existed, and a conspiracy against Gallus as widespread as the one discovered must have been formed before Domitianus arrived at Antioch, although Ammianus makes no mention of it (4).

Nevertheless, to accept this as the full explanation would ignore the remarkable parallels between the situation of Gallus and that in which Julian later found himself. Both were appointed Caesar for military purposes ; both found themselves drawn into civil affairs ; both were suspected by the Emperor and slandered by his officials.

(1) The interpretation is that of R. L. ANDERSON, *The Rise and Fall of Middle Class Loyalty to the Roman Empire*, diss. Univ. of California, Berkeley, 1962 (unpublished), p. 143.

(2) Reports of Thalassius : XIV, 1, 10 ; of Thalassius and others : XIV, 7, 9 ; also XIV, 9, 1 ; 10, 2 ; 11, 24 and cp. THOMPSON, *op. cit.*, p. 69-70.

(3) See p. 461.

(4) For the extent of the plot : XIV, 7, 10-1 ; PHILOSTORGIUS, 4, 8.

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In both cases, when the Caesar had shown an inclination to interfere in civil affairs Constantius decided to act against him. In Gallus' case Domitianus was told to persuade him to come to Italy. Later the Emperor claimed that he wished to use him in a military capacity elsewhere, probably, says Ammianus (XIV, 11, 9), in Gaul ; and there is no reason to doubt such an intention at this stage of events.

However, Domitianus did not obey his orders to behave towards Gallus *blande et uerecunde* (XIV, 7, 9). Instead, ignoring him, the Prefect contacted the plotters, amongst whom was his son-in-law, the younger Apollinaris (*ibid.* 10). They began to seek evidence that Gallus was conspiring to revolt from Constantius (1), evidence which would not only provide a good reason for his recall, but also persuade the Emperor, already worried by his cousin's behaviour, to destroy him. It would appear that the plot had two distinguishable purposes or two different stages, both basically motivated by curial self-interest and a desire to remove and revenge themselves upon their enemy Gallus : the first, which would have pre-existed the arrival of Domitianus, to overthrow Gallus and replace him by another, such as Ursicinus ; the second, developed after the arrival of the Prefect, to discredit him, to bring about his recall and, hopefully, his destruction, and to restore the power of Constantius in the East. Alternatively there might have been two parties in the conspiracy, each with one of these two purposes.

Finally Domitianus confronted Gallus and threatened to cut off his supplies if he did not set out for Italy. According to Ammianus the tone of the ultimatum was inconsiderate. But he was merely asserting his competence over such civil matters and implying the overruling power of the Emperor. When Domitianus was arrested, the Quaestor Montius condemned Gallus' action as treasonable (2) and, according to Philostorgius, he hammered home the point that the Caesar had no control over the civil administration : "You do not even have the power to create a curator. How then can you destroy a Praetorian Prefect ?" (3) And here is the crux of the matter. Domitianus and Montius assert that Gallus has no power at all in civil affairs. Gallus, uncomprehending of his competence, or rather lack of

(1) XIV, 7, 19.

(2) XIV, 7, 12.

(3) 3, 28 : *οὐδὲ λογιστὴν, ἀνεῖπεν, ἐξεστί σοι προχειρίσασθαι, καὶ πῶς ἂν πραιτορίων ἔπαρχον ἀνελεῖν δύναιο ;*

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it in this area, sees only criminal insubordination on the part of the two officials.

These men were killed, perhaps without the order of the Caesar. Nevertheless, he was inevitably held responsible. Then followed the discovery of the plot, the arrests and trial — more interference in civil affairs.

This interpretation makes it clear why Gallus acted so violently and why Constantius was so eager to remove him. The latter saw his Caesar exceeding his competence and suspected treasonable ambition. The former, with a different concept of his powers, saw only exasperating insubordination.

Ammianus says, with conviction in view of the distorted reports which were fed to Constantius, that, after the condemnation of the plotters, the Emperor became desperate to remove Gallus (XIV, 11, 1). This he considered a very difficult task, an assessment of the situation again founded on the false reports. In fact Gallus went without a struggle, for which Ammianus offers the unsatisfactory explanation that his senses were numbed and blunted by the hand of fate (*ibid.*, 12). This is at odds with an earlier claim that Gallus was aware of his danger (*ibid.* 8). Philostorgius (4, 1) suggests that he went quietly in order to spare the state the horrors of another civil war, which would arise if he resisted. More convincingly Ammianus says elsewhere that he had so little support that there was no alternative but to go. Almost the whole of the high bureaucracy was against him and no important official is named as on his side, except the chamberlain Gorgonius (XV, 2, 10) (1).

Nevertheless, at first Gallus hesitated, although repeatedly summoned, for, Ammianus says, he was conscious *quod Constantius cuncta ad suam sententiam conferens, nec satisfactionem suscipiet aliquam nec erratis ignoscet* (XIV, 11, 7). The form of words indicates a misunderstanding which could have been cleared up with a more reasonable man than Constantius. *Erratis* can hardly mean revolutionary designs here.

Finally Gallus set out for Italy, stopping on the way at Constantinople, where he gave horse races and crowned the winning charioteer. When he learned of this, Constantius "flared up beyond human mea-

(1) Lack of support for Gallus : XIV, 11, 8. To the opponents of the Caesar mentioned in book XIV, add those in XXXII, 3, 3, 5 and 11-12 ; 11, 1. Julian faced the same sort of opposition in his dealings with Florentius, Lupicinus, Barbatio, Marcellus and other officials : cp. XVII, 9, 7 ; JULIAN, *Ep. ad Ath.*, 282B-C.

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sure" (XIV, 11, 13), perhaps because Gallus had usurped the prerogative of the Emperor or a civil official. Perhaps also upon receipt of this news the decision was taken to kill him, but more likely this was settled somewhat earlier, after the death of Domitianus. Philostorgius (4, 1) says that Constantius first imprisoned Gallus and only put him to death at the instigation of Eusebius, but it is questionable whether the Emperor would have done the former without intending the latter. Eusebius may well have advised to kill him (1), but probably before the arrest.

Gallus was executed at Pola, the victim of an unworkable arrangement and misunderstanding. Sent out as a soldier, he overestimated his powers. Suspected, spied upon and obstructed, he wandered unwittingly into actions which seemed treasonable to the Emperor. Having failed to cultivate support, he was powerless when deprived of his troops. Julian learned from his half-brother's mistakes, and it is the cautious behaviour and careful planning towards the inevitable final break which distinguish the one from his predecessor.

One last problem. If Gallus had so little support, why was Constantius so hesitant in removing him? His sources of information from the East were not good, and the reports delivered, which probably included tales of Gallus' preparations, would have caused the Emperor to be cautious. But the more important reason lies in the battle fought between Constantius and the usurper Magnentius at Mursa in 351 AD. The combined losses were disastrous, put as high as 54,000 slain; and even if this figure is an exaggeration, by 354 Constantius' forces cannot have recovered, sufficiently at least to guard the frontiers and to fight another civil war (2). Gallus, it seems, was not thinking of revolution, and as soon as the main body of his troops had been withdrawn, he could not have mustered much support, even had he considered war. It should have been easy to remove the Caesar, but Constantius was not absolutely sure that he could not rally the units still in the East and under the command of Ursicinus (who was not withdrawn until long after the decision to remove Gallus had been taken) (3). The Emperor is characterized by

(1) See p. 441.

(2) EUTROPIUS, 10, 12; OROSIUS, 7, 29; ZOSIMUS, II, 53, 1; JULIAN, *Or.*, I, 35D-37A; II, 59C-60C; JEROME, *Chron.*, a. 356; ZONARAS, 13, 8; N. H. BAYNES in *Cambridge Medieval History*, I, p. 62.

(3) XIV, 11, 4-5.

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Ammianus as *in conseruando milite nimium cautus* (XXI, 16, 3), and on one occasion he ordered a general not to risk his soldiers unless absolutely necessary (1). In the present situation, conscious of the threat on both the northern and eastern borders and realizing that another civil war could be fatal for Rome, he preferred to take no risk of a conflict and to lure Gallus away from the East before destroying him (2).

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(1) XIX, 3, 2 ; cp. XXI, 13, 2. LIBANIUS, *Or.*, 18, 206, censures Constantius for refusing to commit his troops against the Persians. ZONARAS, 13, 8, says of the Emperor surveying the field of Mursa after the battle : *εἰς φανερὰ κατήνεκτο δάκρυα, οὐ μᾶλλον διὰ τὴν νίκην ἡδόμενος, ὅσον διὰ τὸν τῶν πεσόντων δακνόμενος ὄλεθρον.*

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